



Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

MEMO TO: Agencies and Adjacent Property Owners
FROM: Chris Toebe, Staff Planner
DATE: September 11, 1997
RE: The following application, now being processed

Docket SU-93-14: DOWE FLATS MINING & RECLAMATION PROJECT

Request: Year 3 Interim Review of compliance with 1994 Special Use approval for limestone/shale open mining/quarrying.
Location: At Dowe Flats, east of Lyons, north of U.S. Hwy. 66, west of 53rd Street, in Sections 9, 10, 15, 16, 21 & 22, T3N, R70W
Zoning: Agricultural (A)
Applicant: Southdown, Inc. c/o John Lohr

Special Use Review / Site Specific Development Plan is required of uses which may have greater impacts on services, neighborhoods or environment than those allowed with only Building Permit Review. This process will review compatibility, services, environmental impacts and proposed site plan.

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Please return responses to the above address by **September 26, 1997**.

We have reviewed the proposal and have no conflicts.

☒ Letter enclosed.

Signed Richard W. Koopmann Please PRINT Name RICHARD KOOPMANN

Agency or Address County Parks & Open Space Department

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Parks and Open Space Department

Administrative Office: 2045 13th Street • Boulder, Colorado 80302 • (303) 441-3950 • FAX (303) 441-4594
Fairgrounds: 9595 Nelson Road • Longmont, Colorado 80501 • (303) 678-6235/441-3927

September 25, 1997

TO: Chris Toebe
Staff Planner

FROM: Parks & Open Space Department
Rich Koopmann

RE: Docket SU-93-14
Dowe Flats Mining & Reclamation Plan

We are in receipt of a number of status reports forwarded by Southwestern Portland Cement Company. Those include:

1. In March, 1997, we were notified and participated in the reinterment of artifacts from 5BL2431 to Indian Mountain.

2. July, 1997 correspondence and hydrologic studies relative to wetland areas 3, 4, and 5. We concur with the Corps of Engineers that the hydrology parameters have been altered sufficiently for these areas to no longer be considered wetlands.

3. July, 1997 progress report on the winter 1996/97 raptor studies. The applicants should be aware that the POS Department has been relocating prairie dogs from other locations in the county to the plague-depleted open space acreage northeast of Rabbit Mountain. This could likely be supplementing the prey base for raptors in the larger Rabbit Mountain-Dowe Flats area.

4. August, 1997 Montgomery School Monitoring Report. The report presented appears to follow the "best case scenario" wherein there was no detectable seismograph reading during the mine blasts. We will forward the recommendation to HPAB to commend Mr. Weston for his diligence and stewardship of the Montgomery School.

5. August, 1997 Cultural Resources Management Plan Addendum. Consideration should be given to having a second back-up or on-call archaeology monitor since Mr. Burney has moved out of state. Monitor availability could be an important issue if something is uncovered during mining operations since the procedures spell out fairly quick response.

6. August 29, 1997 Third Annual Field Inspection Report of Archaeological Properties. For preservation of sensitive archaeological sites, there appears to be some value in a lite to

page 2

no livestock grazing scheme. In addition to decreasing erosion potential, the taller grasses dissuade potential collectors from finding artifacts/features. There continues to be a concern on our part about the apparent loss of artifacts from year to year. However, the county also continues to experience loss of cultural resources on public open space by collectors. Given the obscurity of many of the identified artifacts, those with intimate knowledge of cultural resources continue to be the highest on our list of suspect looters.

We would support the recommendation in the report that a number of the items listed in the discussion on pages 5 and 6 be referred to the DFAIAC for review when they convene in late October.



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- ☒ We have reviewed the proposal and have no conflicts.
☐ Letter enclosed.

Signed CP Niillo Please PRINT Name Chris Ricciardiello
Agency or Address Transportation

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☐ Letter enclosed.

Signed Froda Greenberg Please PRINT Name FRODA GREENBERG
Agency or Address CITY OF LONGMONT

9/22/97

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Chris - PLEASE SEND A COPY OF THE TEMPORARY SUBSTITUTE WATER SUPPLY PLAN TO KEN HUSON OF OUR WATER/WASTEWATER DEPT. THANKS AS ALWAYS.
FRODA

Jana L. Mendez
County Commissioner

Ronald K. Stewart
County Commissioner

Paul Danish
County Commissioner



Land Use Department

Courthouse Annex

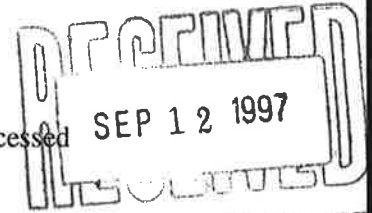
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Signed

Paul B. All

Please PRINT Name

Dave Lock

Agency or Address

Town of Lyons

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See [unclear] [unclear]

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OCT 01 1997

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Signed Laverne M. Johnson Please PRINT Name Laverne M. Johnson
Agency or Address Lyons Historical Soc

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☐ Letter enclosed.

Signed Kirk Cunningham Please PRINT Name Kirk Cunningham

Agency or Address Sierra Club, 1842 Canyon Blvd. #204, Boulder CO 80302

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Signed Gene McCain Please PRINT Name GENE MCCAIN

Agency or Address 5099 UTE HIGHWAY 66

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SEP 18 1997

LAND USE DEPT.

Chris Toebe
STAFF Planner
Land Use Dept.

Reference

Docket SU-93-14: Dove Flats Mining
and Reclamation Project.

Dear Chris Toebe and Boulder County
Commissioners - Please refer to my
ROUGH SKETCH.

As you can see by my rough draft we
are very close to these dusty conditions
which has been thrust upon us.

Hundreds of yards of loose material
and fines have been dumped upwind
of our residence.

The filters on our swamp cooler
have been plugged up and are not efficient
for cooling our home.

Back up bells from equipment begin @
06:30 every morning. The road is not
for access but for hauling material.

At times the dust is so thick from these new beams and rail road that I can hardly see my cattle in the back pasture.

Now this company who wants to be good neighbors have installed a huge Red tank directly in line of sight of my kitchen window.

The time I can take but please help me with these un healthy dust conditions. We are not the only ones concerned, about the health issues and the disregard for our environment.

I am sure that in the future chronic health issues will result from these conditions.

Thank you for your consideration.

Sincerely
Gene McCain

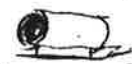
H.S. words cannot express
how bad the dust is.
G.

ROUGH SKETCH
NOT TO SCALE

CRUSHER



Red Tank



Stock Pile
Beam
#3

Access
Road

conveyor

96'

150'

McLAW Property
line

LINE OF
SIGHT

#1 300 feet

Beam



Residence

less than
200 feet

ute

Highway 66



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SEP 19 1997

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☒ Letter enclosed. - SBR NOTE BELOW

Signed Frank Namesnik Please PRINT Name FRANK NAMESNIK

Agency or Address 15757 Moss Rock Dr., Longmont, Co, 80503

COUNTY MAINTENANCE OF ROAD # 417
IS LESS THAN SATISFACTORY. THE ROAD A DAY AFTER
GRADING IS JUST AS BAD AS IT WAS PRIOR TO GRADING.
POT HOLES ARE NOT BEING CUT OUT - JUST COVERED
WITH LOOSE MAT'L. PLEASE ADDRESS THIS ISSUE!

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Jana L. Mendez
County Commissioner

Ronald K. Stewart
County Commissioner

Paul Danish
County Commissioner



Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex

2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

441-4856

MEMO TO: Agencies and Adjacent Property Owners
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☐ Letter enclosed.

Signed Tess M Jones

Please PRINT Name Tess M Jones

Agency or Address CDOT

* Please ensure that landscaping does not obscure any access minimum sight distance.

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Faxed 10/3/97

Jana L. Mendez
County Commissioner

Ronald K. Stewart
County Commissioner

Paul Danish
County Commissioner





Fry - 3) 441-4856

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex

2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

October 24, 1997

To: Chris Toebe

John Lohr
Southdown, Inc.
P.O. Box 529
Lyons, CO 80540



Dear Applicant(s):

This letter certifies that a hearing of the Planning Commission, County of Boulder, State of Colorado, was duly called and held on October 15, 1997, in consideration of the following request:

Docket SU-93-14: DOWE FLATS MINING & RECLAMATION PROJECT

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The Planning Commission finds that, and recommend to the Board of County Commissioners that Docket SU-93-14: Dowe Flats Mining & Reclamation Project continues to operate in compliance with the conditions of approval, and that the conditions of approval continue to be enforceable.

This docket has been scheduled for final consideration by the Board of County Commissioners on November 25, 1997 at 9:00 a.m., in the Hearing Room, Third Floor, County Courthouse, Boulder.

If you have any questions, please feel free to contact me at (303) 441-3930.

Sincerely,

Chris Toebe, Planner II
Current Planning Division
Land Use Department

cc: All Adjacent Property Owners

Chris - I have issued the FINAL Phase access permit for restriping & signing changes. I hope they will complete that work immediately.

1 less - CDOT Access
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360-2163

Jana L. Mendez
County Commissioner

Ronald K. Stewart
County Commissioner

Paul Danish
County Commissioner